

in the context of the Cross-Complaint's claims.

In the court's ruling on the Demurer to Cross-Complaint, the Court sustained the Demurrer with regard to the "Fraud/Concealment" and "Constructive Fraud" causes of action. Therefore the Court agrees that the prayers for punitive damages should be stricken.

The Motion to Strike is **granted**.

Cross-Defendants are directed to prepare and serve notice of entry of this order on Cross-Complainants. Cross-Complainants must file an Amended Complaint within 30 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C23-01219

CASE NAME: ELVECIO MACHADO VS. GINO CARUSO

***HEARING ON MOTION IN RE: TO DISMISS FOR FAILURE TO COMPLY WITH COURT ORDER**

FILED BY: CARUSO, LAUDELINA

TENTATIVE RULING:

At the June 6, 2026 Case Management Conference, the court explained to the moving party that the premise of its motion was incorrect. Plaintiffs had not violated a court order because they filed their First Amended Complaint in a timely fashion. In open court, the moving party graciously agreed to withdraw this motion and this was noted in the minutes of the June 6, 2026 Case Management Conference.

The motion was previously withdrawn.

8. 9:00 AM CASE NUMBER: C24-00026

CASE NAME: AVERY TIDWELL VS. DOES 1 THROUGH 100, INCLUSIVE

***HEARING ON MINOR'S COMPROMISE AS TO JAYLYN BRUSSARD**

FILED BY: BRUSSARD, JAYLYN

TENTATIVE RULING:

Petitioner **Avery Tidwell's** Petition for Approval of Compromise of Minor **Jaylyn Brussard's** ("Minor") Claim ("Petition"), filed on April 13, 2026, is **granted**.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged with the Court on April 13, 2026.